

SENATE BILL 1352

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 59; Title 60; Title 68 and Title 69, relative to
toxic release inventory data.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 101, is amended by adding the following as a new section:

No later than January 1, 2026, the department of environment and conservation shall create and maintain an informational tool on the department's website that provides data related to the presence of facilities that are required to submit toxic release inventory data to the environmental protection agency pursuant to the Emergency Planning and Right-to-Know Act (42 U.S.C. § 11001 et seq.). The department shall maintain the informational tool in a publicly accessible location. The tool must:

(1) Allow an individual to input an address and receive a list of:

(A) Facilities that are located within a five-mile radius of the address; and

(B) Notice of whether an application has been submitted for the construction or expansion of a facility that may be subject to the toxic release reporting requirements within a five-mile radius of the address, and any information regarding the status of such application, including any applicable comment or input period related to the application;

(2) Allow an individual to request receipt of a notice if an application for the construction or expansion of a facility that may be subject to the toxic release

reporting requirements is submitted for a location within a five-mile radius of an address specified by the individual making the request; and

(3) Be updated using information that the department receives regarding such facilities and applications, including information found in the toxic release inventory data compiled and made publicly available by the environmental protection agency. The department shall post such updates within ten (10) business days of receipt of information that necessitates an update.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.